

# Workflow Precedent Review

## A CROSS-PRACTICE DECISION CANVAS - RUSSELL DUDEK

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<https://russelldudek.github.io/AIAction/>

**Purpose:** decide whether an AI-enabled workflow should remain matter-specific, become a practice pattern, enter cross-practice testing, become a maintained firm standard, be repaired, or retire. This is an operating metaphor, not legal authority.

### 1. FACT PATTERN

Attorney task, client objective, eligible users, matter conditions, consequence, current friction.

### 4. EVALUATION RECORD

Representative test set, task quality, citations, omissions, agreement, security, failure and release evidence.

### 2. KNOWLEDGE RECORD

Approved sources, provenance, taxonomy, access, privilege boundary, freshness, content owner.

### 5. ADOPTION AND OWNERSHIP

Practice sponsor, workflow insertion point, training, support, feedback, technical and content owners.

### 3. HUMAN AUTHORITY

AI role, required lawyer judgment, review checkpoint, escalation, override, prohibited action.

### 6. VALUE EVIDENCE

Observed effect on matter execution, attorney leverage, quality, client responsiveness, or economics.

### PROPOSED TREATMENT

| TREATMENT                                         | WHY THIS SCOPE IS DEFENSIBLE | EVIDENCE STILL NEEDED |
|---------------------------------------------------|------------------------------|-----------------------|
| <input type="checkbox"/> Matter prototype         |                              |                       |
| <input type="checkbox"/> Practice pattern         |                              |                       |
| <input type="checkbox"/> Cross-practice candidate |                              |                       |
| <input type="checkbox"/> Firm standard            |                              |                       |
| <input type="checkbox"/> Repair / hold / retire   |                              |                       |

30-MINUTE REVIEW AGENDA

| TIME  | QUESTION                                                                                           | OWNER                                |
|-------|----------------------------------------------------------------------------------------------------|--------------------------------------|
| 0-4   | What attorney or client-service outcome is constrained, and what changed since the last decision?  | Practice sponsor                     |
| 4-9   | What is the actual workflow, and which sources and taxonomies make the AI useful?                  | Applied AI + KM                      |
| 9-14  | What authority stays with lawyers, and what access, privilege, or risk boundaries apply?           | Matter owner + Risk / OGC / Security |
| 14-19 | What evaluation evidence exists, what failed, and what would make release unsafe?                  | Applied AI + technical owner         |
| 19-24 | Are attorneys using it in real work? What corrections, workarounds, or abandonment signals matter? | Practice manager + users             |
| 24-28 | What value is observable, and what adaptation or maintenance burden comes with broader reuse?      | Director + practice leadership       |
| 28-30 | Promote, limit, repair, hold, stop, or retire? Who owns the next evidence?                         | Named decision owner                 |

DECISION RECORD

**Decision**

☐ Promote   ☐ Limit   ☐ Repair

☐ Hold   ☐ Stop   ☐ Retire

**Scope**

Eligible practice / matters / users / data / jurisdictions / duration:

**Required authority**

Named human review, release, override, and escalation:

**Next evidence**

Test, adoption, value, risk, knowledge, or support evidence needed:

**Owners**

Practice | Applied AI | KM | Technology | Risk / OGC | Adoption:

**Revisit trigger**

Date, model change, knowledge change, incident, adoption threshold, or new use case:

CROSS-PRACTICE TRANSFER CHECK

| MUST BE RETESTED                      | SAME | DIFFERENT | ADAPTATION REQUIRED |
|---------------------------------------|------|-----------|---------------------|
| Attorney task and client objective    |      |           |                     |
| Knowledge sources and taxonomy        |      |           |                     |
| Privilege, access, and data handling  |      |           |                     |
| Human authority and escalation        |      |           |                     |
| Evaluation and failure consequence    |      |           |                     |
| Workflow insertion and adoption owner |      |           |                     |
| Value evidence and maintenance burden |      |           |                     |

**Rule:** Reuse the controls and components that survive comparison. Do not export assumptions simply because the technology is portable.